

## 26STCV05165 26STCV05165

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Case Number: 26STCV05165 Hearing Date: August 11, 2026 Dept: 731

[TENTATIVE] ORDER RE: PETITIONER'S  
MOTION TO COMPEL CONSOLIDATED ARBITRATION

Moving Party: Petitioner, Atollah Hadji

Opposing Party: Respondent, Mobilitas Insurance Company

Opposing Party: Respondent, United States Fire Insurance Company

Notice: OK

### Background Facts

This matter stems from a motor vehicle accident occurring on December 16, 2022, while Petitioner Atollah Hadji was operating a vehicle for rideshare services (Lyft). At the time of the collision, Petitioner was covered under two separate insurance policies relevant to this dispute: (a) an automobile insurance policy issued by Respondent Mobilitas Insurance Company ("Mobilitas") providing Uninsured/Underinsured Motorist ("UM/UIM") coverage and (b) an Occupational Accident Insurance ("OAI") policy issued by Respondent United States Fire Insurance Company ("U.S. Fire") (sued as Blue Star Insurance Company, renamed by amendment on April 28, 2026) providing benefits for injuries sustained during rideshare operations. Both policies contain provisions requiring disputes over benefits to be resolved via binding arbitration. Petitioner served demands for arbitration upon both carriers. However, the carriers have failed to proceed jointly.

Now before the Court is Petitioner's

opposed, May 22, 2026, motion to (1) consolidate the arbitration proceedings with Mobilias and with U.S. Fire, (2) compel Respondents to participate in a single arbitration addressing coverage for the December 16th accident, (3) appoint James L. Crandall as the arbitrator, and (4) order arbitration within 90 days of this Court's order here.

Petition to Consolidate,  
Compel Arbitration, Appoint Arbitrator, Order Arbitration Timeline

As repeated from the background above,  
now before the Court is Petitioner's opposed, May 22, 2026, motion to:

(1) Consolidate the arbitration proceedings  
with Mobilias and with U.S. Fire;

(2) Compel Respondents to participate  
in a single arbitration addressing coverage for the December 16th accident;

(3) Appoint James L. Crandall as the  
arbitrator; and

(4) Order arbitration within 90 days  
of this Court's here order.

Mobilias has filed a partial opposition,  
in which it expressly states that it is not opposed to a single arbitration before James L. Crandall, but objecting to the 90-day timeline, and contending that the UM/UIM arbitration should be stayed pending the outcome of the arbitration with U.S. Fire based on OAI payments needing to be credited against any recovery against Mobilias.

In reply, Petitioner substantively argues  
that Mobilias' opposition failed to oppose the request for consolidation and that Mobilias' request for stay and offset arguments support Petitioner's position that the arbitrations involve common issues of law or fact. Petitioner otherwise proposes, in lieu of the request for completion of arbitration within 90 days of this Court's order, a request for a court order to conduct an arbitration case management conference before Hon. James L. Crandall (Ret.) and obtain the earliest reasonably available arbitration date following completion of any remaining discovery.

In turn, U.S. Fire has filed an opposition  
wholesale resisting to participating in a unified forum on various grounds, against  
which Petitioner has filed a reply.

The Court now turns to the merits  
of the requested relief, discussing consolidation of and joint arbitration in a  
single section, and discussing appointment of an arbitrator and timeline for  
the arbitrator in separate subsequent sections.

a. Request  
to Compel Consolidated Arbitration

i. Legal  
Standard

A party to an arbitration agreement  
may petition the court to consolidate separate arbitration proceedings, and the  
court may order consolidation of separate arbitration proceedings when:

(1) Separate arbitration agreements  
or proceedings exist between the same parties; or one party is a party to a  
separate arbitration agreement or proceeding with a third party; and

(2) The disputes arise from the  
same transactions or series of related transactions; and

(3) There is common issue or issues  
of law or fact creating the possibility of conflicting rulings by more than one  
arbitrator or panel of arbitrators.

If all of the applicable  
arbitration agreements name the same arbitrator, arbitration panel, or  
arbitration tribunal, the court, if it orders consolidation, shall order all  
matters to be heard before the arbitrator, panel, or tribunal agreed to by the  
parties. If the applicable arbitration agreements name separate arbitrators,  
panels, or tribunals, the court, if it orders consolidation, shall, in the  
absence of an agreed method of selection by all parties to the consolidated  
arbitration, appoint an arbitrator in accord with the procedures set forth in  
Section 1281.6.

In the event that the arbitration agreements in consolidated proceedings contain inconsistent provisions, the court shall resolve such conflicts and determine the rights and duties of the various parties to achieve substantial justice under all the circumstances.

The court may exercise its discretion under this section to deny consolidation of separate arbitration proceedings or to consolidate separate arbitration proceedings only as to certain issues, leaving other issues to be resolved in separate proceedings.

(Code Civ. Proc., § 1281.3, subds. (1)-(3).)

## ii. Discussion

### 1. Statutory Requirements

The statutory requirements for consolidation are satisfied here.

First, Petitioner has valid, binding contractual arbitration agreements with both Mobilias and U.S. Fire. (Motion, Diarian Decl., ¶ 5, Ex. A [Mobilias policy] & ¶ 7, Ex. C [U.S. Fire policy].)

Second, both claims arise entirely out of the exact same transaction or series of transactions: the motor vehicle collision on December 16, 2022.

Third, the primary factual inquiry across both arbitrations is identical: the nature, extent, and causation of Petitioner's personal injuries, medical expenses, and wage losses resulting from the crash. Allowing these arbitrations to run on separate tracks poses a distinct threat of inconsistent or contradictory rulings. For example, one arbitrator could determine that certain special damages are the financial responsibility of the OAI carrier, while a separate arbitrator could independently find they fall solely under the UIM carrier's coverage, leaving Petitioner with incomplete recovery despite buying both policies. Furthermore, because Mobilias disputes the relative order and allocation of offsets between the OAI policy and the statutory UM/UIM framework under Insurance Code section 11580.2, resolution of their overlapping obligations is best determined

globally.

Accordingly, sufficient grounds for consolidation exist here.

2. U.S.

Fire Opposition

The Court here addresses U.S. Fire's other arguments in opposition to relief here.

U.S. Fire argues that a petition to compel UIM/UM arbitration under Insurance Code section 11580.2 cannot be used to compel contractual arbitration under Code of Civil Procedure section 1281.2. According to U.S. Fire, the former "establishes a specific, mandatory arbitration procedure for disputes arising under uninsured and underinsured motorist coverage," while the latter "provides the general mechanism for compelling contractual arbitration." (U.S. Fire Opposition, pp. 7-8.) U.S. Fire moreover contends that "[t]he California Supreme Court has recognized the UIM/UM arbitration under section 11580.2 is 'statutory,' not 'contractual' in character. (*Bouton v. USAA Casualty Ins. Co.* (2008) 43 Cal.4th 1190, 1199 [*Bouton*].)" (U.S. Fire Opposition.)

The Court disagrees with U.S. Fire on that point. In *Pilimai v. Farmers Ins. Exchange Co.* (2006) 39 Cal.4th 133 (*Pilimai*), the California Supreme Court reiterated its holding in *Mercury Ins. Group v. Superior Court* (1998) 19 Cal.4th 332 (*Mercury Insurance*) that "an uninsured motorist arbitration, although mandated by statute, nonetheless is a contractual arbitration subject to the provisions of the [California Arbitration Act (CAA)], including Code of Civil Procedure section 1281. Nor is there anything in the language of Code of Civil Procedure section 1281 that suggests a contractual arbitration provision in an insurance policy that is statutorily mandated is outside the scope of the CAA." (*Pilimai*, supra, 39 Cal.4th at p. 141.) The portion of the *Bouton* case that U.S. Fire cites does not claim, as U.S. Fire argues, that arbitration under Insurance Code section 11580.2 was statutory instead of contractual. If the Supreme Court had so held, it would have abrogated its principle in *Mercury Insurance*, which it did not and has not done. Instead, the Court held that in UM/UIM arbitration proceedings, an arbitrator may determine only liability, damages, and other issues that the parties have agreed to arbitrate; the UM/UIM arbitrator may not determine other issues in that proceeding. (See *Bouton v. USAA Casualty Ins. Co.* (2008) 43 Cal.4th 1190, 1200 ["To the extent that [one

California Supreme Court case, *Van Tassel v. Superior Court* (1974) 12 Cal.3d 624, 627] improperly permitted an arbitrator to determine issues other than liability and damages—the issues mandated by section 11580.2, subdivision (f) to be arbitrable, and the only issues the parties agreed to arbitrate—it is overruled”].) Here, *Bouton* is inapplicable because Petitioner is not moving for an order compelling an arbitrator to determine non-statutory or non-contractual issues in a single, UM/UIM arbitration proceeding between Mobilias and Petitioner. Instead, he is seeking an order consolidating the Mobilias-Petitioner UM/UIM arbitration with another separate, U.S. Fire-Petitioner OAI arbitration.

U.S. Fire also argues that OAI arbitration cannot be consolidated with UM/UIM arbitration because they provide different coverages and address different categories of loss that neither overlap nor are duplicative.

According to U.S. Fire, UIM/UM coverage stands in the shoes of the tortfeasor and provides the insured with the full measure of compensatory damages that would be recoverable in a personal injury action, including general damages for pain, suffering, emotional distress, and loss of enjoyment of life, as well as special damages, such as medical expenses, lost wages, and future economic loss.” (U.S. Fire Opposition, p. 5.)

U.S. Fire then contends that, in contrast, the OAI policy “is limited to reimbursing reasonable charges for medical services and supplies that have been ordered by a physician for the diagnosis or treatment of an occupational accident and deemed medically necessary,” such that “coverage does not address tort liability” and “does not compensate for pain and suffering, emotional distress, or any other category of general or non-medical special damages.” (U.S. Fire Opposition, p. 5.)

However, U.S. Fire has not cited (and this Court has not found) any law or statute holding that OAI and UM/UIM arbitration proceedings cannot be consolidated under Code of Civil Procedure section 1281.3. The statute only exempts professional negligence claims against a health care provider brought under Code of Civil Procedure section 1295 from consolidation. (See Code Civ. Proc., § 1281.3 [“This section shall not be applicable to an agreement to arbitrate disputes as to the professional negligence of a health care provider made pursuant to Section 1295”].) The statute does not contain a similar exemption for OAI coverage disputes, which this Court finds notable. (Cf. *People v. Trevino* (2001) 26 Cal.4th 237, 242 [“When the Legislature uses materially different language in statutory provisions addressing the same subject or related subjects, the

normal inference is that the Legislature intended a difference in meaning”].)

Moreover, the Supreme Court in *Pilimai* again affirmed its holding in *Mercury Insurance* “that because a contractual arbitration proceeding could be consolidated with a pending civil case involving a third party, so too could an uninsured motorist arbitration.” (*Pilimai*, *supra*, 39 Cal.4th at p. 141.) Here, U.S. Fire admits that an arbitration between it and Petitioner would be a “contractual” arbitration proceeding. (See e.g., Motion, p. 8 [arguing that the OAI policy arbitration “is governed by the general arbitration provisions of Code of Civil Procedure §§ 1281 through 1281.95”].) Therefore, under *Pilimai* and *Mercury Insurance*, Petitioner’s UM/UIM policy arbitration can be consolidated with the OAI policy arbitration under Code of Civil Procedure section 1281.3 as long as the requirements of the statute are satisfied.

Given that Petitioner has satisfied the requirements for consolidation under Code of Civil Procedure section 1281.3, the Court GRANTS Petitioner’s request to compel Respondents to arbitration and to consolidate the proceedings.

b. Request  
for Appointment of Arbitrator

As discussed above, Petitioner requests an order appointing James L. Crandall, Esq.—the arbitrator presiding over the UM/UIM arbitration—as arbitrator over consolidated proceedings.

However, as urged by U.S. Fire’s opposition at pages 13 to 14, the Court DENIES this relief.

Here, because there are two separate arbitration agreements, and because those agreements do not share a method for appointment of arbitrator (see Motion, Diarian Decl., ¶ 5, Ex. A [Mobilias policy] & ¶ 7, Ex. C [U.S. Fire policy]), the Court must “appoint an arbitrator in accord with the procedures set forth in Section 1281.6.” (Code Civ. Proc., § 1281.3.)

Section 1281.6 states in relevant part: “When a petition is made to the court to appoint a neutral arbitrator, the court shall nominate five persons from lists of persons supplied jointly by

the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. The parties to the agreement who seek arbitration and against whom arbitration is sought may within five days of receipt of notice of the nominees from the court jointly select the arbitrator whether or not the arbitrator is among the nominees. If the parties fail to select an arbitrator within the five-day period, the court shall appoint the arbitrator from the nominees.”

Having denied relief, the Court will instead order the parties into an arbitrator selection process as ordered below.

c. Request  
for 90-Day Arbitration

Last, the Court wholesale DENIES Plaintiff’s requests for the Court to impose some equitable timeline on the arbitration, whether it be 90 days or consistent with an arbitrator’s scheduling order. The request is directed towards this Court’s equitable, and thus discretionary powers, and this Court sees no grounds or comparison in authority for granting this relief.

d. Conclusion

Petitioner Atollah Hadji’s motion is accordingly is GRANTED in part and DENIED in part as follows:

(1) GRANTED as to consolidating arbitration proceedings;

(2) GRANTED as to compelling both Respondents into the consolidated arbitration proceedings;

(3) DENIED as to appointing James L. Crandall, Esq. over the consolidated arbitration proceeding; and

(4) DENIED as to imposing an equitable time period to complete arbitration.

The Court ORDERS the parties to



meet and confer and file a joint list of persons from which the Court can select an arbitrator no later than August 25, 2026.

The Court SETS an Order to Show

Cause re: Appointment of Arbitrator for 8:30 A.M. on Tuesday, September 1, 2026. In connection therewith, no later than August 25, 2026, the Parties SHALL file a joint list of five persons proposed to act as arbitrator over the consolidated proceedings. If the parties cannot agree on five persons, each party SHALL individually file its list of proposed arbitrators, though the Court highly encourages the parties to confer in good faith to agree on an arbitrator.

Petitioner Atollah Hadji is ORDERED to give notice.

Parties who intend to submit on this tentative must send an email to the court at [email protected] indicating intention to submit on the tentative as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.